JUSTICE KENNEDY delivered the opinion of the Court.

Federal law prohibits corporations and unions from using their general treasury funds to make independent expendi-

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Hampshire, and by the Attorneys General for their respective States as follows: *Richard Blumenthal* of Connecticut, *Bill McCollum* of Florida, *Mark J. Bennett* of Hawaii, *Lisa Madigan* of Illinois, *Tom Miller* of Iowa, *Steve Six* of Kansas, *Douglas F. Gansler* of Maryland, *Martha Coakley* of Massachusetts, *Michael A. Cox* of Michigan, *Lori Swanson* of Minnesota, *Jim Hood* of Mississippi, *Anne Milgram* of New Jersey, *Gary K. King* of New Mexico, *Roy Cooper* of North Carolina, *Wayne Stenehjem* of North Dakota, *Richard Cordray* of Ohio, *W. A. Drew Edmondson* of Oklahoma, *Thomas W. Corbett, Jr.*, of Pennsylvania, *Patrick C. Lynch* of Rhode Island, *Lawrence E. Long* of South Dakota, *Robert E. Cooper, Jr.*, of Tennessee, *William H. Sorrell* of Vermont, and *Darrell V. McGraw, Jr.*, of West Virginia; for the American Civil Liberties Union by *Steven R. Shapiro*, *Joel M. Gora*, and *Mark J. Lopez;* for the American Justice Partnership et al. by *Cleta Mitchell* and *Michael J. Lockerby;* for the California Broadcasters Association et al. by *Lawrence H. Norton*, *James A. Kahl*, and *Gregg P. Skall;* for the California First Amendment Coalition by *Gary L. Bostwick* and *Jean-Paul Jassy;* for Campaign Finance Scholars by *Allison R. Hayward, pro se;* for the Center for Constitutional Jurisprudence by *Anthony T. Caso*, *Edwin Meese III*, and *John C. Eastman;* for the Center for Independent Media et al. by *Monica Youn;* for the Center for Political Accountability et al. by *Mr. Sandstrom;* for the Committee for Economic Development by *Paul M. Smith;* for the Democratic National Committee by *Robert F. Bauer* and *David J. Burman;* for the Fidelis Center for Law and Policy et al. by *Patrick T. Gillen;* for Former Officials of the American Civil Liberties Union by *Norman Dorsen* and *Burt Neuborne*, both *pro se;* for the Free Speech Defense and Education Fund, Inc., et al. by *William J. Olson*, *Herbert W. Titus*, *John S. Miles*, and *Mark B. Weinberg;* for the Hachette Book Group, Inc., et al. by *Michael J. Chepiga;* for the Independent Sector by *M. Devereux Chatillon;* for the Institute for Justice by *William R. Maurer*, *William H. Mellor*, *Steven M. Simpson*, and *Robert W. Gall;* for Judicial Watch, Inc., by *Paul J. Orfanedes* and *Dale L. Wilcox;* for Justice at Stake et al. by *James E. Scarboro;* for the Michigan Chamber of Commerce by *Richard D. McLellan*, *Gary P. Gordon*, *John D. Pirich*, and *Andrea L. Hansen;* for the Pacific Legal Foundation by *Deborah J. La Fetra* and *Damien M. Schiff;* for Public Good by *Seth E. Mermin;* for Seven Former Chairmen of the Federal Election Commission et al. by *Messrs. Bopp* and *Coleson;* and for Representative Chris Van Hollen et al. by *Bradley S. Phillips* and *Aaron S. Lowenstein.*